

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 40-004

Amendments to Titles 5 and 17 of the Chickasaw Nation Code (Mandatory School Attendance and Truancy)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for courts, procedures, and criminal offenses, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that any charges filed prior to the effective date of this Resolution against any person pursuant to any stricken or changed provisions herein shall continue and be unaffected by this Resolution.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that the sentence of any person convicted of an offense herein stricken or changed shall remain unaffected by this Resolution.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that the provisions of this Resolution shall become effective on April 1, 2023.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 5, Chapter 3, Article C, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

ARTICLE C **TRUANCY COURT**

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| Section 5-503.1 | Chickasaw Nation Truancy Court. |
| Section 5-503.2 | Definitions. |
| Section 5-503.3 | School Attendance. |
| Section 5-503.4 | Exceptions to School Attendance. |
| Section 5-503.5 | Participation in the Chickasaw Nation Truancy Court. |

Section 5-503.6 Chickasaw Nation Truancy Court Programs.
Section 5-503.7 Cooperative Agreements.

SECTION 5-503.1 **CHICKASAW NATION TRUANCY COURT.**

There is hereby established a Chickasaw Nation Healing to Wellness Court under Title 5, Chapter 3, Article B, of the Chickasaw Nation Code known as the “Chickasaw Nation Truancy Court.” Policies and procedures, and amendments to such policies and procedures as necessary, to improve the attendance or conduct of a Child in School will be developed.

SECTION 5-503.2 **DEFINITIONS.**

A. Except as otherwise provided for herein, defined terms used in this Article shall have the meaning ascribed to them in Title 6, Section 6-301.3.

B. “School” means the state-supported public school district within which the Child resides or receives a valid school transfer; a private school or extension program approved either under the Chickasaw Nation Code or State law; or a home-based instructional program as authorized pursuant to Oklahoma law, or approved under the Chickasaw Nation Code, designed to allow the Child and Parent, Guardian, or Custodian to administer to the unique needs of the Child.

SECTION 5-503.3 **SCHOOL ATTENDANCE.**

Any Child who is over the age of five (5) years, and under the age of eighteen (18) years, is compelled to attend and comply with the rules of some public, private, or other School, unless other means of education are provided for the full term the Schools of the district are in session or the Child is excused.

SECTION 5-503.4 **EXCEPTION TO SCHOOL ATTENDANCE.**

A Child and his or her Parent, Guardian, or Custodian shall be excused from the requirements of this Chapter and shall not be subject to the penalties set out herein if any of the following are present:

A. The School attended by the Child has excused such student from attendance because the Child is physically or mentally unable to attend School and the School is providing all legally required services in a home-based or other approved program;

B. The Child is attending an accredited online school program or residential school operated by the Chickasaw Nation, other Indian education agency, or the Oklahoma Department of Human Services; or

C. The Child has been temporarily excused upon the request of his or her Parent, Guardian, or Custodian for purposes agreed upon by the School authorities and Parent, Guardian, or Custodian. Such excused absences shall not be permitted if deemed to cause a serious adverse effect upon the Child's educational progress.

SECTION 5-503.5

**PARTICIPATION IN THE CHICKASAW NATION
TRUANCY COURT.**

The office of the Prosecutor may elect not to file charges for an offense of mandatory school attendance if the Child's Parent, Guardian, or Custodian participates in the Chickasaw Nation Truancy Court and completes any program established thereby.

SECTION 5-503.6

CHICKASAW NATION TRUANCY COURT PROGRAMS.

A. A program of services from the Chickasaw Nation department(s) assigned the responsibility of providing truancy services to a Child and their Parent, Guardian, or Custodian to improve school attendance or the conduct of a Child in School shall be developed. Services shall clearly document diligent attempts to provide appropriate services to the Child and the Child's Parent, Guardian, or Custodian unless it is determined that there is no substantial likelihood that the Child and the Child's Parent, Guardian, or Custodian will benefit from further services and supervision of the Chickasaw Nation Truancy Court.

B. Steps taken by the School district to improve the attendance or conduct of the Child in School shall be reviewed and attempts to engage the School district in further diversion attempts shall be made if it appears that such attempts will be beneficial to the Child.

C. Upon completion of the program established by the Chickasaw Nation Truancy Court, the Court shall release the Child and the Child's Parent, Guardian, or Custodian from the Chickasaw Nation Truancy Court. The Court may order status hearings as the Court determines necessary to monitor the attendance or conduct of a Child in School. The Court may refer the Child and the Child's Parent, Guardian, or Custodian to the Chickasaw Nation Truancy Court if the Court finds the Child will benefit from additional participation in the Chickasaw Nation Truancy Court.

SECTION 5-503.7

COOPERATIVE AGREEMENTS.

A. The Chickasaw Nation may enter into cooperative agreements with any school or school district operating in whole or in part within the Chickasaw Nation for purposes of increasing and improving the attendance and overall well-being of students who are covered by this Chapter.

B. The Chickasaw Nation may enter into cooperative agreements with other courts in whole or in part within the Chickasaw Nation to ensure the goals of the Chickasaw Nation Truancy Court are met.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 17, Chapter 5, Article A, Section 17-501.7, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-501.7

MANDATORY SCHOOL ATTENDANCE.

A. It shall be unlawful for a Parent, Guardian, or Custodian having custody of a Child who is over the age of five (5) years, and under the age of eighteen (18) years, to neglect or refuse to cause or compel such Child to attend and comply with the rules of some public, private, or other School, unless other means of education are provided for the full term the Schools of the district are in session or the Child is excused as otherwise provided for in the Chickasaw Nation Code.

B. Any Parent, Guardian, Custodian, or other person violating this Section, upon conviction, shall be guilty of a misdemeanor, and shall be punished as follows:

1. For the first offense, a fine of not less than Twenty-five Dollars (\$25) nor more than Fifty Dollars (\$50), or imprisonment for not more than five (5) days, or both such fine and imprisonment; and

2. For the second offense, a fine of not less than Fifty Dollars (\$50) nor more than One Hundred Dollars (\$100), or imprisonment not more than ten (10) days, or both such fine and imprisonment; and

3. For the third or subsequent offense, a fine of not less than One Hundred Dollars (\$100) nor more than Two Hundred Fifty Dollars (\$250), or imprisonment for not more than fifteen (15) days, or both such fine and imprisonment.

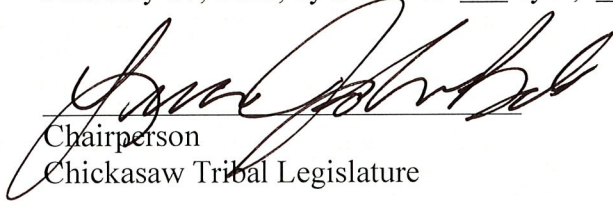
C. Each day the Child remains out of School after the oral and documented or written warning has been given by the Court to the Parent, Guardian, or Custodian of the Child shall constitute a separate offense.

D. It shall be a defense for a Parent, Guardian, Custodian, or other person charged for violating this section the Parent, Guardian, Custodian, or other person charged with the violation exercised reasonable diligence in attempting to cause a Child to attend School or that the School did not fulfill its duties under the law.

E. For purposes of this Section, "Child," "Parent," "Guardian," or "Custodian" shall have the meaning ascribed to them in Title 6, Section 6-301.3.

F. For purposes of this Section, "School" shall have the meaning ascribed to it in Title 5, Section 5-503.2.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 17, 2023, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 17 2023

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 40-004
Amendments to Titles 5 and 17 of the Chickasaw Nation Code
(Mandatory School Attendance and Truancy)

Explanation:

This resolution creates a new criminal offense of Mandatory School Attendance. This resolution also establishes a new Chickasaw Nation Truancy Court which is intended to provide diversion services to children and their families in order to improve school attendance.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature